

4. The Parties are to appear to address the issues identified above.

FIRST NATIONAL BANK vs. JULIET ATKINS

Case No. CU25-03100

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows:

Plaintiff's motion for judgment on the pleadings is granted without leave to amend.

Defendant's answer does not deny any material allegation of the complaint. Instead, Defendant implicitly admitted the existence and amount of the debt. (Answer, § 3(b).) Every material allegation not controverted by the answer is to be taken as true for purposes of the action. (Code Civ. Proc. § 431.20(a); *Hennefer v. Butcher* (1986) 182 Cal.App.3d 492, 504.) And, a creditor owes no duty to exercise reasonable forbearance in enforcing its remedies. (*Price v. Wells Fargo Bank* (1989) 213 Cal.App.3d 465, 479 [a creditor owes no duty of reasonable forbearance in enforcing its remedies].) In other words, any breakdown in settlement negotiations due to any unreasonableness by Plaintiff would not be a valid defense to the breach of contract cause of action where a creditor has no duty to exercise reasonable forbearance in enforcing its legal remedies against a debtor. (*Id.*)

The Court has also reviewed Defendant's amended answer filed on May 14, 2026 and notes that the amended answer still does not deny any material allegations of the complaint or present any affirmative defenses. Regarding leave to amend, the Court finds that Defendant has not identified any ability to deny any material allegations or allege any new matter that constitutes a valid affirmative defense to the cause of action. As such, there is no basis for leave to amend.

Judgment shall be entered for Plaintiff and against Defendant for the principal balance of \$144,600.47. Costs may be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc. § 1034(a).)

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